

Smt. Manna Devi v. U.P. Electricity Regulatory Commission

Allahabad High Court · Division Bench · 20 January 2017 · Writ-C No. 2964 of 2017 · Writ-C No. 2964 of 2017 · **Writ disposed; cl. 6.5/5.9 remedies; restore on ₹25,000 deposit.**

HEADNOTE

A consumer's writ against electricity bills and an alleged defective meter, after disconnection, was disposed by leaving her to Clauses 6.5 and 5.9 of the Electricity Supply Code, 2005. Supply was directed to be restored if ₹25,000 was deposited within a week, the balance to abide orders in those Code proceedings.

FACTUAL SUMMARY

Smt. Manna Devi petitioned the Allahabad High Court against demand bills issued for electricity consumption and alleged that her meter was defective. Counsel for the respondents submitted that those grievances could be taken under Clauses 6.5 and 5.9 of the Electricity Supply Code, 2005. Her counsel added that supply had been disconnected on 4 January 2017 and sought restoration, offering to deposit some amount toward the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-and-meter-grievance-relegation

HOLDING

A writ challenging electricity bills and alleging a defective meter after disconnection is disposed by leaving the consumer to Clauses 6.5 and 5.9 of the Electricity Supply Code, 2005; supply shall be restored if ₹25,000 is deposited within a week, the balance depending on orders in those proceedings. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED BILLS AND WHETHER THE METER WAS DEFECTIVE

Relegated to Clauses 6.5 and 5.9 ¶ 1

NOT DECIDED — LIABILITY FOR THE BALANCE DEMAND AFTER THE ₹25,000 DEPOSIT

Left to depend on orders in the Code remedies ¶ 1